

NOTE: A SEPARATE PETITION MUST BE FILED FOR EACH CRIMINAL CASE AND THE CHARGE(S) MUST BE LISTED IN THIS PETITION FOR THE CHARGE(S) TO BE EXPUNGED. ADDITIONALLY, A COPY OF YOUR CURRENT EXPUNGEMENT ELIGIBILITY CERTIFICATION MUST BE ATTACHED TO THIS PETITION.

AOC-496.2 Rev. 7-16 Page 1 of 2 Commonwealth of Kentucky Court of Justice www.courts.ky.gov KRS 431.078; 218A.275(8); 218A.276(8); 431.079	 PETITION FOR EXPUNGEMENT (FOR MISDEMEANOR, VIOLATION, OR TRAFFIC INFRACTION CONVICTION)	Case No. _____ Court _____ County _____ Division _____
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COMMONWEALTH OF KENTUCKY	PLAINTIFF
VS.	
_____ NAME	DEFENDANT
_____ ADDRESS	

() _____ PHONE NUMBER	Jail ID Number _____ (optional)
Defendant's Birthdate: _____	Defendant's SSN: _____ Violation/Arrest Date: _____

Comes now the Defendant herein, and petitions the Court, pursuant to KRS 431.078, to expunge the following misdemeanor, violation, or traffic infraction charge(s) in the above-referenced case:

CHARGE: _____	CHARGE: _____
CHARGE: _____	CHARGE: _____
CHARGE: _____	CHARGE: _____

- In support of this Petition, the Defendant states as follows:
- The Defendant was convicted of the misdemeanor(s), violation(s) or traffic infraction(s) charged above.
 - The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child.
 - The Defendant has not, been convicted of a felony or misdemeanor in the five years prior to the filing of this Petition.
 - The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired.
 - No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant.
 - This petition ☐ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the Defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).
 - List the names and addresses of all victims of the crimes listed above and any other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement:

Victims: _____

Persons with relevant information: _____

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Case No. _____

The Defendant prays that this Petition for Expungement of a Misdemeanor, Violation, or Traffic Infraction Conviction be granted and that this Court enter an Order that the following agencies expunge any records in the agencies custody regarding these charges: **LIST AGENCIES AND ADRESSES HERE:**

Note: Defendant/Petitioner must sign this petition **in the presence of** a notary **or** the circuit court clerk so that the notary/ clerk can notarize his/her signature.

Date: _____, _____, _____
Defendant/Petitioner Signature

Subscribed and sworn to before me by _____
this _____ day of _____, _____.

Notary/Clerk

My commission expires: _____, _____ By: _____ D.C.

THERE IS A \$100 FEE PER CASE, PAYABLE AT THE TIME OF FILING. THE CLERK CANNOT TAKE YOUR PETITION WITHOUT PROPER PAYMENT OF THE FEE. IF AN EXPUNGEMENT ORDER IS NOT GRANTED, \$50.00 OF THIS FEE IS NOT REFUNDABLE.

NOTIFICATION OF EXPUNGEMENT HEARING

This case is set for a hearing on _____, _____, at the hour of _____ ☐ a.m. ☐ p.m. at the _____ ☐ District ☐ Circuit Court.

Dated this ____ day of _____, _____.

Clerk

By: _____ D.C.

FOR CLERK USE ONLY

This Petition for Expungement was sent on the _____ day of _____, _____, to Defendant/ Petitioner or his/her attorney; the County Attorney; all crime victim(s) identified by Defendant/Petitioner or in the court record sought to be expunged; and all other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement.

Clerk

By: _____ D.C.

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